



CHAPTER lxxxvii.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to Kilrush (Rural) Londonderry and New Ross.

A.D. 1905.

[11th July 1905.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1896 :

41 & 42 Vict. c. 52.
 43 & 44 Vict. c. 67.
 47 & 48 Vict. c. 77.
 52 & 53 Vict. c. 64.
 53 & 54 Vict. c. 59.
 59 & 60 Vict. c. 54.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
 schedule
 confirmed.

2. The authorities mentioned in the Londonderry Order 1905 and the New Ross Order 1905 hereby confirmed shall not under the powers of those Orders purchase or acquire in any urban district any house or houses which on the fifteenth day of December last were occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board any house or houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
 of power to
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[Ch. lxxxvii.] *Local Government Board (Ireland) [5 Edw. 7.]
Provisional Orders Confirmation (No. 4) Act, 1905.*

A.D. 1905.

If the said authorities acquire or appropriate any house or houses for the purposes of those Orders in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 4) Act 1905.

[Ch. lxxxvii.] *Local Government Board (Ireland) [5 Edw. 7.]
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Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 4) Act 1905.

SCHEDULE.

A.D. 1905.

RURAL DISTRICT OF KILRUSH.

*Provisional Order to enable the Council of the Rural District of
Kilrush to put in force the Compulsory Clauses of the Lands
Clauses Acts.* *Kilrush.*

WHEREAS the council of the rural district of Kilrush (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a supply of water for the town of Kilkee in their district :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :— 41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them. 59 & 60 Vict.
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the Schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Clare in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council. 61 & 62 Vict.
c. 87.

4. This Order may be cited as the Kilkee Waterworks Order 1905.

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A.D. 1905.

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[Ch. lxxxvii.] *Local Government Board (Ireland) [5 EDW. 7.]
Provisional Orders Confirmation (No. 4) Act, 1905.*

A.D. 1905.
Kilrush.

SCHEDULE.

County of CLARE Rural District of KILRUSH.

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1	Part of the townland of Corbally containing 11a. 16p.	C. B. A. MacDonnell -	Patrick Mara.
2	Part of the townland of Lislainaghan containing 7a. 32p.	Francis B. Henn - -	Ditto.
3	Ditto containing 17a. 3r. 24p. -	Ditto - - -	Patrick Neylan.

Given under our seal of office this fifth day of May one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

COUNTY BOROUGH OF LONDONDERRY.

Londonderry. Provisional Order to enable the Corporation of Londonderry to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the mayor aldermen and burgesses of the county borough of Londonderry acting by the town council (in this Order referred to as "the Corporation") as the sanitary authority for that county borough require to purchase and take the lands described in the schedule hereto for the purpose of improving the supply of water for the said county borough :

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of any other power enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

59 & 60 Vict.
c. 54.

1. The Corporation shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

3. The costs and expenses of the Corporation and of the Local Government Board for Ireland incurred in respect of the application for preparation

[Ch. lxxxvii.] *Local Government Board (Ireland) [5 EDW. 7.]
Provisional Orders Confirmation (No. 4) Act, 1905.*

A.D. 1905.
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[5 EDW. 7.] *Local Government Board (Ireland) [Ch. lxxxvii.]*
Provisional Orders Confirmation (No. 4) Act, 1905.

making and confirmation of this Order shall be paid by the Corporation as part of their expenses under the Public Health (Ireland) Acts 1878 to 1896. A.D. 1905.
Londonderry.

4. This Order may be cited as the Londonderry Order 1905.

SCHEDULE.

County of LONDONDERRY Parish of CLONDERMOT.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
Townland of BOLIES.				
1	Bed and soil of stream containing 28p.	Colonel George Knox D.L.	Charles Smith -	Charles Smith.
2	Arable land containing 2a. 3r. 34p.	Ditto -	Ditto -	Ditto.
3	House offices garden and yard containing 1r. 24p.	Ditto -	Ditto -	Ditto.
4	Arable land containing 2a. 2r. 7p.	Ditto -	Ditto -	Ditto.
5	Private roadway containing 33p.	Ditto -	Ditto -	Ditto.
6	Arable land containing 2a. 14p.	Ditto -	Ditto -	Ditto.
7	Ditto containing 1a. 3r. 2p. -	Ditto -	Andrew Emery -	Andrew Emery.
8	Private roadway containing 18p.	Ditto -	Ditto -	Ditto.
9	Arable land containing 3r. 15p.	Ditto -	Ditto -	Ditto.
Townland of TAMNYMORE.				
1	Arable land containing 1a. 1r. 31p.	John R. Gouldsbury.	A. Watson -	A. Watson.
2	House and garden containing 1r.	Ditto -	Ditto -	P. Gillespie.
3	Bed and soil of stream containing 17p.	Ditto -	Ditto -	A. Watson.
4	Ditto containing 10p. -	Ditto -	Ditto -	P. Gillespie.
Townland of CORRODY.				
1	Arable land containing 10p. -	Colonel George Knox D.L.	Daniel McCafferty and Denis McCafferty.	Daniel McCafferty and Denis McCafferty.

Given under our seal of office this fifth day of May one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

[5 EDW. 7.] *Local Government Board (Ireland) [Ch. lxxxvii.]*
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[Ch. lxxxvii.] *Local Government Board (Ireland) [5 EDW. 7.]
Provisional Orders Confirmation (No. 4) Act, 1905.*

A.D. 1905.

URBAN DISTRICT OF NEW ROSS.

*New Ross. Provisional Order to enable the Council of the Urban District of
New Ross to put in force the Compulsory Clauses of the Lands
Clauses Acts.*

WHEREAS the urban district council of New Ross (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a supply of water for their district:

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

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2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of the rate applicable by that council to defray the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1896.

4. This Order may be cited as the New Ross Order 1905.

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[5 EDW. 7.] *Local Government Board (Ireland) [Ch. lxxxvii.]*
Provisional Orders Confirmation (No. 4) Act, 1905.

SCHEDULE.

A.D. 1905.
New Ross.

Nos. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Occupiers.
COUNTY OF CARLOW.			
Townland of DRANAGH.			
1	Water of Drummin River forming part of the supply to Michael Hickey's Mill.	Walter McMurrrough Kavanagh	Thomas Rourke.
2	Land containing 1a. 16p. -	Ditto - - - - -	Jeremiah Rourke.
3	Land containing 1a. 20p. -	Ditto - - - - -	Thomas Rourke Jeremiah Rourke and Representatives of Richard Murphy.
4	Land containing 1r. 30p. -	Ditto - - - - -	Jeremiah Rourke.
Townland of BALLYNALOUR.			
1	Water of Drummin River forming part of the supply to Michael Hickey's Mill.	Walter McMurrrough Kavanagh	Thomas Rourke Jeremiah Rourke and Representatives of Richard Murphy.
2	Land containing 6a. 2r. 5p. -	Ditto - - - - -	Ditto.
3	Land containing 5p. -	Ditto - - - - -	Jeremiah Rourke.
COUNTY OF WEXFORD.			
Townland of BALLYLEIGH.			
19	Land containing 3r. 10p. -	James Murphy - - -	James Murphy.

Given under our seal of office this fourth day of May one thousand nine hundred and five.

(L.S.)

H. A. ROBINSON.

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FOR
ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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[5 EDW. 7.] *Local Government Board (Ireland)* [Ch. lxxxvii.]
Provisional Orders Confirmation (No. 4) Act, 1905.

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3	Land containing 5p. -	Ditto - - - - -	Jeremiah Rourke.
COUNTY OF WEXFORD.			
Townland of BALLYLEIGH.			
19	Land containing 3r. 10p. -	James Murphy - - -	James Murphy.

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(L.S.)

H. A. ROBINSON.

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